

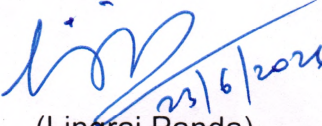
F.No. 1-2/2026-SS-3
Government of India
Ministry of Education
Department of School Education & Literacy

Kartavya Bhavan-II, New Delhi
Dated: 23rd June, 2026

Subject: Repealing of obsolete provisions relating to recognition/registration of schools under pre-RTE State/UT Acts and Rules – reg.

A copy of an advisory on repealing of obsolete provisions relating to recognition/registration of schools under pre-RTE State/UT Acts and Rules is enclosed herewith for information and consideration for action.

Yours faithfully


23/6/2026

(Lingraj Panda)
Deputy Secretary
Email: lingraj.panda@ias.nic.in

To

Education Secretaries of all the States/UTs

F.No. 1-2/2026-SS-3
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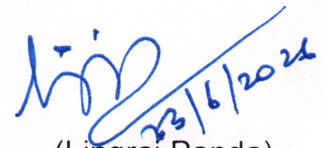
Kartavya Bhavan-II, New Delhi, Dated: 23rd June, 2026

Subject: Repealing of obsolete provisions relating to recognition/registration of schools under pre-RTE State/UT Acts and Rules – reg.

The Right of Children to Free and Compulsory Education (RTE) Act, 2009 and the corresponding State Rules framed thereunder provide a comprehensive framework governing recognition of schools imparting elementary education. The recognition requirements prescribed under the RTE framework have been in operation for more than a decade and are being implemented across States and Union Territories. It has been observed that in several States and Union Territories, provisions relating to recognition and/or registration of schools contained in pre-RTE State/UT Education Acts and Rules continue to remain on the statute books, notwithstanding the subsequent enactment and implementation of the RTE Act, 2009 and the corresponding State/UT Rules. If separate recognition requirements are enforced parallel to those mentioned under RTE Act, 2009, these recognition/registration provisions may lead to duplicative administrative burdens on school management and State/UT machinery. Even if the provisions are not enforced in practice, there is a need to remove these provisions from State/UT Laws for enhancing regulatory clarity.

2. In view of the above, the States and Union Territories may undertake a review of the provisions relating to recognition and/or registration of schools contained in pre-RTE State/UT Education Acts, Rules and other subordinate legislation and take necessary steps for repeal, omission of such provisions, wherever they have become redundant or are overlapping with the recognition framework prescribed under the RTE Act, 2009 and the corresponding State/UT Rules.

Yours faithfully



(Lingraj Panda)

Deputy Secretary

Email: lingraj.panda@ias.nic.in

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